

CHAPTER 8.*Recall of Army and Air Force Pensioners Act, 1948.*

ARRANGEMENT OF SECTIONS.

Section.

1. Liability of army and air force pensioners to recall for service.
 2. Occasion for and period of recall.
 3. Procedure for the recall of pensioners.
 4. Pension not to reduce pay during recall.
 5. Interpretation.
 6. Short title.
- Schedule.—Army and air force pensioners not liable to be recalled for service.

An Act to make provision for enabling discharged soldiers or airmen in receipt of service pensions to be recalled for service in an emergency; and for purposes connected therewith. [16th December 1948.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Subject to the provisions of this section, an army or air force pensioner to whom this Act applies shall be liable under this Act to be recalled for service in such circumstances and for such period as are specified in the following provisions of this Act.

Liability of
army and
air force
pensioners
to recall
for service.

(2) This Act applies to army and air force pensioners whose service pensions have been assessed or re-assessed in accordance with pension provisions made after the passing of this Act, other than—

(a) pensioners whose service pensions were originally granted before the third day of September, nineteen hundred and thirty-nine,

(b) pensioners being persons of any description mentioned in the Schedule to this Act.

(3) In the last foregoing subsection the expression “ pension provisions made after the passing of this Act ” means—

(a) in the case of army pensioners, the provisions of a Royal Warrant issued after the passing of this Act ;

(b) in the case of air force pensioners, the provisions of an Order by His Majesty so issued,

not being provisions as to which the Warrant or Order directs that they shall be disregarded for the purposes of this Act.

(4) A person shall cease to be liable under this Act to be recalled for service when he attains the age of sixty years.

Occasion for
and period
of recall.

2.—(1) A person liable under this Act to be recalled for service may be recalled at any time when men of the army reserve or air force reserve, as the case may be, are or are deemed to be called out on permanent service under the Reserve Forces Act, 1882.

(2) A person recalled for service under this Act shall be deemed to be enlisted in the regular forces or the regular air force, according as he was an army pensioner or an air force pensioner, for the period beginning with the time as from which he is so recalled and ending with such date as His Majesty may by Order in Council declare to be the end of the emergency which was the occasion of the calling-out under the said Act of 1882 of men of the reserve in question :

Provided that, notwithstanding anything in section seventy-six of the Army Act or section seventy-six of the Air Force Act, any such person shall, if on his recall he so requires, be so enlisted for the said period in accordance with the provisions of section eighty of the Army Act or section eighty of the Air Force Act (which provide for the procedure on enlistment) as the case may require, and thereupon he shall not be deemed to have been enlisted by virtue of the foregoing provisions of this subsection.

Procedure
for the recall
of pensioners.

3.—(1) The appropriate Service Authority may cause to be served on any person liable to be recalled for service under this Act a notice stating that he is recalled for service and requiring him to present himself at such place and at such time (not earlier than the third day after the service of the notice), and to such authority, as may be specified in the notice ; and subject to the provisions of this section he shall be deemed to be recalled for service under this Act as from the said time (hereinafter referred to as " the time of recall ").

(2) A notice served under this section may, before the time of recall, be cancelled by a subsequent notice thereunder or be varied by altering the place at which or authority to whom he is thereby required to present himself at the time of recall.

(3) A notice under this section shall cease to have effect if before the time of recall the person on whom it is served ceases to be liable under this Act to be recalled for service.

(4) Any notice under this section shall be deemed to be duly served on a person if it is sent to him by post addressed to his last known address :

Provided that no steps shall be taken against a person in respect of failure to comply with such a notice unless either it is proved that the notice was received by him or the notice was sent addressed as aforesaid by registered post ; and where, in the case of a notice not sent by registered post, it appears to the appropriate Service Authority that the person to whom the notice relates may not have received the notice, the Authority may serve on him by registered post a subsequent notice superseding the original notice.

4. A person recalled for service under this Act shall not suffer Pension not to any reduction in pay or other emoluments in respect of his reduce pay service while recalled by reason of being in receipt of a service during recall. pension and his service pension shall not be withheld or reduced by reason of his being in receipt of any such pay or emoluments.

5.—(1) In this Act the following expressions have the meanings Interpretation. hereby assigned to them respectively, that is to say :—

“ army pensioner ” and “ air force pensioner ” mean persons who have been discharged from service as soldiers and as airmen respectively and are in receipt of service pensions;

“ service pension ” means a pension granted in respect of service as a soldier of the regular forces or an airman of the regular air force or in respect of that service and other service, but does not include a pension awarded in respect of disablement ;

“ appropriate Service Authority ” means in relation to an army pensioner the Army Council and in relation to an air force pensioner the Air Council ;

and other expressions used in this Act have in relation to army pensioners the same meanings as in the Army Act, and in relation to air force pensioners the same meanings as in the Air Force Act.

(2) References in this Act to any enactment shall be construed as references to that enactment as amended by or under any subsequent enactment.

(3) For the purposes of this Act, a person shall be deemed to be in receipt of a pension if the pension has been granted to him and has not been wholly forfeited, notwithstanding that any part of the pension has been commuted for a sum of money in lieu thereof or that the pension or any part thereof is for the time being administered or otherwise applied for any purpose or paid to some other person, or that the pension or any part thereof has not been paid for any period.

(4) For the purposes of the last foregoing subsection, the forfeiture of a pension shall be disregarded if the whole or any part of the pension has been restored since the forfeiture was incurred.

6. This Act may be cited as the Recall of Army and Air Force Short title. Pensioners Act, 1948.

SCHEDULE.

Section 1.

ARMY AND AIR FORCE PENSIONERS NOT LIABLE TO BE RECALLED FOR SERVICE.

1. A man in holy orders or a regular minister of any religious denomination.

2. A person who is the subject of an order or inquisition under the Lunacy and Mental Treatment Acts, 1890 to 1930, or is being detained

as a criminal lunatic or in pursuance of an order made under the Criminal Lunatics Act, 1884, or is undergoing treatment as a temporary patient under section five of the Mental Treatment Act, 1930, or has been placed in an institution or a certified house, or under guardianship, under section three of the Mental Deficiency Act, 1913, or is the subject of an order under section six, eight or nine of that Act, or is under supervision provided under paragraph (b) of section thirty of that Act, or is an inmate of a home approved under section fifty of that Act, or is the subject of a notification under subsection (2) of section fifty-one of that Act.

3. A person certified by a local authority, as defined for the purposes of Part III of the National Assistance Act, 1948, to be registered as a blind person under arrangements made by the authority under section twenty-nine of that Act.

TABLE OF STATUTES REFERRED TO
IN THIS ACT.

Short Title.	Session and Chapter.
Reserve Forces Act, 1882	45 & 46 Vict. c. 48.
Criminal Lunatics Act, 1884	47 & 48 Vict. c. 64.
Mental Deficiency Act, 1913	3 & 4 Geo. 5. c. 28.
Mental Treatment Act, 1930	20 & 21 Geo. 5. c. 23.
National Assistance Act, 1948	11 & 12 Geo. 6. c. 29.

CHAPTER 9.

Prize Act, 1948.

ARRANGEMENT OF SECTIONS.

Section.

1. Aggregate amounts of Naval and Marine, and R.A.F., prize payments.
 2. Distribution of Naval and Marine prize payments.
 3. Application of R.A.F. prize payments.
 4. His Majesty's forces to which this Act applies.
 5. Control, audit, etc., of Funds.
 6. Payments to Dominions, and from Dominions and colonies, etc., in respect of prize.
 7. Disposal of certain sums standing to the credit of Prize Deposit Account or prize causes.
 8. Regulation of payments out of and into Prize Deposit Account.
 9. Abolition of future prize money, and of prize bounty.
 10. Short title and definition.
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